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K-12 Teacher Recruitment and Retention Policies in the Higher Education Act: In Brief

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SUMMARY

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Rita R. Zota
Analyst in Education Policy

K-12 Teacher Recruitment and Retention Policies in the Higher Education Act: In Brief

The K-12 teacher workforce is relatively large—each year, about 4 million teachers are employed in U.S. elementary and secondary schools. Turnover in many of these schools is high relative to earlier periods—16% of teachers left their school in the 2021-2022 academic year. This figure follows federal statistical trends that show a steady rise in teacher attrition since the late 1980s. In addition, there is evidence that teacher quality standards have been lowered in order to fill open positions. Teacher shortages and high turnover raise a number of recruitment and retention issues that may be of interest to policymakers.

One of the more difficult issues involves a debate between observers who are concerned about an *overall* teacher shortage, and others who see it largely as a distributional problem where some schools have a relative surplus of teachers while other schools struggle with a persistent, unmet demand for qualified teachers. Those in the former camp focus on policies that aim to improve the recruitment and retention in the teaching profession in general, while those in the latter camp focus on policies that target education funding to fill positions for certain *hard-to-staff* schools and/or subject areas.

Current federal policy addresses recruitment and retention. The Higher Education Act (HEA) authorizes grant support to institutions that prepare K-12 teachers as well as financial aid to students interested in the teaching profession. Title II of the HEA authorizes grants for improving teacher education programs, strengthening teacher recruitment efforts, and providing training for prospective teachers. Title IV of the HEA authorizes Teacher Education Assistance for College and Higher Education (TEACH) Grants to encourage students to prepare for a career in teaching and student loan forgiveness for teachers that remain in the classroom over a number of years.

The HEA was last comprehensively amended in 2008 by the Higher Education Opportunity Act (HEOA, P.L. 110-315). Congressional consideration of potentially reauthorizing the HEA is ongoing, including the introduction of numerous bills to amend the portions of current law that address teacher recruitment and retention. Issues that may arise as the reauthorization process unfolds include modifying the Title II grant partnership structure, targeting support to specific teacher shortage areas or non-instructional staff, expanding teacher preparation program accountability, reforming administration of the TEACH Grant program, and expanding or consolidating teacher loan forgiveness programs.

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Introduction

The K-12 teacher workforce is relatively large—each year, nearly 4 million teachers are employed in U.S. elementary and secondary schools.[1] Turnover in these schools is high relative to earlier periods—16% of teachers left their school in the 2021-2022 academic year. This figure follows federal statistical trends that show a steady rise in teacher attrition since the late 1980s.[2] In addition, there is evidence that teacher quality standards have been lowered in order to fill open positions.[3] The problem of teacher turnover raises a number of recruitment and retention issues of interest to policymakers.

The Higher Education Act (HEA) is the main federal law containing policies designed to address these issues.[4] Title II of the HEA authorizes grant support for schools that prepare new teachers.[5] Title IV of the HEA authorizes financial support to encourage people to stay in the teaching profession in the form of student loan forgiveness and other benefits. The HEA was last comprehensively amended in 2008 by the Higher Education Opportunity Act (HEOA, P.L. 110-315). Although the authorities have expired, the associated programs continue to receive appropriations. Congressional consideration of potentially reauthorizing the HEA is ongoing, with the introduction of numerous bills to amend current law and address teacher recruitment and retention.

This report describes the history of federal teacher recruitment and retention policy, current policies in this area, and related issues that may arise as Congress considers reauthorizing the HEA.

Legislative History[6]

Teacher recruitment and retention have been the focus of federal policy since the HEA was first enacted in 1965. This section briefly describes the history of federal policy in this area.

[1] About 3.7 million full-time-equivalent (FTE) elementary and secondary school teachers were engaged in classroom instruction in fall 2020, including 3.2 million public school teachers and 0.5 million private school teachers. T.D. Snyder, C. de Brey, and S.A. Dillow, Digest of Education Statistics 2024 (NCES 2024-009), U.S. Department of Education, Institute of Education Sciences, National Center for Education Statistics, Washington, DC, 2024, Table 105.40.

[2] The percentage of teachers leaving the profession or moving to a different school between the 1987-1988 and 1988-1989 school years was 13.5; in subsequent years, the rate grew to 13.7% (1993/1994-1994/1995), 15.1% (1999/2000-2000/2001), 16.5% (2003/2004-2004/2005), 15.5% (2007/2008-2008/2009), 15.7% (2011/2012-2012/2013), and 15.9% (2020/2021-2021/2022). S. Taie and L. Lewis, *Teacher Attrition and Mobility, Results From the 2021–22 Teacher Follow-up Survey to the National Teacher and Principal Survey*, U.S. Department of Education (Washington, DC: National Center for Education Statistics, 2023), https://nces.ed.gov/pubsearch/pubsinfo.asp?pubid=2024039.

[3] An analysis of data from the NTPS found that 34% of teachers newly hired in the 2020-2021 school year were not certified for their assignments. L. Darling-Hammond, M. DiNapoli Jr., and T. Kini, *The Federal Role in Ending Teacher Shortages*, Learning Policy Institute, 2023, https://doi.org/10.54300/649.892.

[4] The Elementary and Secondary Education Act (ESEA) also includes programs for K-12 teachers; however, these focus mainly on in-service training and class size reduction. More information on ESEA programs is available in CRS Report R44297, *Reauthorization of the Elementary and Secondary Education Act: Highlights of the Every Student Succeeds Act*, by Rebecca R. Skinner and Jeffrey J. Kuenzi.

[5] More information on these programs is available in CRS Report R45407, *Teacher Preparation Policies and Issues in the Higher Education Act*, by Jeffrey J. Kuenzi.

[6] The programs in this section are described in greater detail in archived CRS Report 91-377, *Title V of the Higher Education Act: Programs for Teachers*, by James B. Stedman (available to congressional clients upon request).

Teacher Corps and Teacher Centers

The HEA was originally enacted by the 89th Congress and signed into law on November 8, 1965 (P.L. 89-329). Title V authorized the Teacher Corps program, which recruited interns for teaching in high-poverty areas of the country. These interns, directed by experienced teachers, taught in participating K-12 schools while also taking higher education courses to secure teaching certificates. The program was initially funded in FY1966 and phased out in FY1981 under the Omnibus Budget Reconciliation Act of 1981 (P.L. 97-35).

In 1967, Title V became the Education Professions Development Act (EPDA, P.L. 90-35), which reauthorized the Teacher Corps program and authorized a number of new teacher development programs.[7] Among these programs were efforts to attract low-income persons to teaching and a fellowship program for enhancing the skills of higher education faculty training elementary and secondary school teachers. In general, EPDA programs were funded beginning for FY1969 or FY1970. The Education Amendments of 1976 (P.L. 94-482) repealed all of the EPDA with the exception of the Teacher Corps program.

The Education Amendments of 1976 (P.L. 94-482) renamed Title V as Teacher Corps and Teacher Training Programs, extended the Teacher Corps program authorization, and authorized a new Teacher Centers program.[8] Teacher Centers, first funded for FY1978, were operated by local educational agencies (LEAs) or institutions of higher education (IHEs), and provided in-service training to the elementary and secondary school teaching force. The Omnibus Budget Reconciliation Act phased out the program in FY1981.

Paul Douglas Teacher Scholarships and Christa McAuliffe Fellowships

Initially enacted in 1984 under the Human Services Reauthorization Act (P.L. 98-558), the Paul Douglas Teacher Scholarships provided annual $5,000 postsecondary education scholarships, for up to four years, to outstanding high school graduates (candidates in the top 10% of their high school graduating class, among other criteria). Recipients were required to teach for two years at the K-12 level for each year of scholarship assistance they received, an obligation that could be reduced by half for those teaching in geographic or subject areas that were experiencing shortages. Federal funds were allocated by formula to states. The Paul Douglas Teacher Scholarships were first funded for FY1986 and last funded for FY1995 (when the program authority was terminated).

Also initially authorized under the Human Services Reauthorization Act, the National Talented Teacher Fellowships, later-renamed the Christa McAuliffe Fellowships, provided one-year awards to outstanding, experienced public and private elementary and secondary school teachers for sabbaticals.[9] Following sabbaticals to develop innovative teaching projects, recipients had to return to their prior place of employment for two years. The federal appropriation was allocated

[7] The EPDA is described in greater detail in archived CRS Report 73-74, *Background and Summary of the Education Professions Development Act*, by Katherine Montgomery (available to congressional clients upon request).

[8] These programs are described in greater detail in archived CRS Report 84-36S, *Federal Efforts to Improve America's Teaching Force*, by K. Forbis Jordan and Nancy B. Borkow (available to congressional clients upon request).

[9] Sharon Christa McAuliffe was an American teacher and astronaut from Concord, NH, and one of the seven crew members killed in the Space Shuttle Challenger disaster.

by formula among the states. The Christa McAuliffe Fellowships were first funded for FY1987 and last funded for FY1995.[10]

Mid-Career Teacher Training and Minority Teacher Recruitment

The Higher Education Amendments of 1986 (P.L. 99-498) rewrote Title V as Educator Recruitment, Retention, and Development. These amendments not only extended and renamed the scholarship and fellowship programs enacted in 1984, but also added two new programs intended to recruit new teachers to the profession: Mid-Career Teacher Training and Minority Teacher Recruitment.[11]

Mid-Career Teacher Training provided grants to IHEs for the establishment of programs to prepare individuals leaving their current careers in order to teach. Eligibility was limited to individuals with a baccalaureate or advanced degree who had job experience in education-related fields. Two fields are specifically cited in the authorizing statute: preschool and early childhood education. IHEs were initially to receive a planning grant of not more than $100,000 to be used in the two fiscal years following selection; however, the program was funded for two years (FY1990 and FY1991).

Minority Teacher Recruitment awarded grants to partnerships between an IHE and either a State Education Agency (SEA) or an LEA to recruit and train minority students, beginning with students in 7th grade, to become teachers. The program also awarded grants to IHEs to improve teacher preparation programs and to support teacher placement in schools with high minority student enrollment. It was initially funded for FY1993 and received its last appropriation for FY1997.

Teacher Quality Enhancement Program

The Higher Education Amendments of 1998 established a new federal teacher program in Title II, the Teacher Quality Enhancement Grant program.[12] Part A of Title II authorized three types of competitively awarded grants: State Grants, Partnership Grants, and Recruitment Grants. State Grants and Partnership Grants were each authorized to receive 45% of the appropriation for Title II-A and Recruitment Grants were allocated the remaining 10%. Funds for these grants were first appropriated for FY1999 and have been continued to the present day under new authority described below. State Grants and Partnership Grants funds were to be used for activities including the improvement of teacher pre-service preparation, accountability for teacher preparation programs, the reform of teacher certification requirements (including alternative routes to certification), and in-service professional development.

Recruitment Grants funds were to be used for the recruitment of highly qualified teachers (Partnership Grants could also be used for this purpose). Specific recruitment activities described in Title II include teacher education scholarships, support services to help recipients complete postsecondary education, follow-up services during the first three years of teaching, and activities enabling high-need LEAs and schools to recruit highly qualified teachers. In 2008, HEA Title II-

[10] These fellowships are described in more detail in archived CRS Report 91-388, *Christa McAuliffe Fellowship Program: Reauthorization by the 102nd Congress*, by James B. Stedman (available to congressional clients upon request).

[11] These programs are described in greater detail in archived CRS Report 92-794, *Programs for School Teachers: Title V of the Higher Education Act*, by James B. Stedman (available to congressional clients upon request).

[12] More information on these programs may be found in CRS Report RL31882, *Teacher Quality Enhancement Grants (Title II, Part A of the Higher Education Act): Overview and Reauthorization Issues*, by Jeffrey J. Kuenzi.

A was renamed the Teacher Quality Partnership program under amendments made by the HEOA, which remains current law.

Current Programs

The HEA addresses current K-12 teacher issues through programs supporting the improvement of teacher preparation and recruitment. Title II of the HEA authorizes grants for improving teacher education programs, strengthening teacher recruitment efforts, and providing training for prospective teachers. This title also includes reporting requirements for states and IHEs regarding the quality of teacher education programs.[13] Title IV of the HEA authorizes Teacher Education Assistance for College and Higher Education (TEACH) Grants to encourage more students to prepare for a career in teaching and student loan forgiveness for individuals teaching in certain high-need subjects. Teachers may also be eligible for student loan relief through the Title IV Public Service Loan Forgiveness program.

Teacher Quality Partnership Grants

Title II, Part A of the HEA authorizes Teacher Quality Partnership (TQP) grants to improve the quality of teachers working in high-need schools and early childhood education programs by improving the preparation of teachers and enhancing professional development activities for them, holding teacher preparation programs accountable for preparing effective teachers, and recruiting highly qualified individuals into the teaching force.[14]

Eligible Partnerships

To be eligible, partnerships must include a high-need LEA; a high-need school or high-need early childhood education program (or a consortium of high-need schools or early childhood education programs served by the partner high-need LEA); a partner IHE; a school, department, or program of education within the partner IHE; and a school or department of arts and sciences within the partner IHE. The TQP statute requires that a high-need LEA must have either a high rate of out-of-field teachers or a high rate of teacher turnover and meet one of the following three criteria:

1. have at least 20% of its children served be from low-income families;
2. serve at least 10,000 children from low-income families; or
3. be eligible for one of the two Rural Education Achievement Programs.[15]

[13] Under these provisions, states and IHEs that operate teacher preparation programs are required to report information on the performance of their programs. States must do so as a condition of receiving HEA funds. IHEs must do so if they enroll students receiving federal assistance under the HEA. IHEs must issue report cards to the state and to the general public. States must issue report cards to the Department of Education (ED) and to the general public. ED is required by the HEA to use state-reported information to issue an annual report on teacher qualifications and preparation in the United States. More information on the reporting and accountability provisions in HEA, Title II may be found in CRS Report R45407, *Teacher Preparation Policies and Issues in the Higher Education Act*, by Jeffrey J. Kuenzi.

[14] More information on the Teacher Quality Partnership program may be found in CRS Report R45407, *Teacher Preparation Policies and Issues in the Higher Education Act*, by Jeffrey J. Kuenzi.

[15] More information on this program may be found in CRS Report R44906, *The Rural Education Achievement Program: Title V-B of the Elementary and Secondary Education Act*, by Jeffrey J. Kuenzi.

Partnership Activities

Partnership grant funds are authorized to be used for a Pre-Baccalaureate Preparation program, a Teacher Residency program, or both. Funds may also be used for a Leadership Development program, but only in addition to one of the other two programs. Activities authorized by the HEOA amendments are described below.

Pre-Baccalaureate Preparation Program

Grants are provided to implement a wide range of reforms in teacher preparation programs and, as applicable, preparation programs for early childhood educators. These reforms may include, among other things,

- implementing curriculum changes that improve, evaluate, and assess how well prospective teachers develop teaching skills;
- using teaching and learning research so that teachers implement research-based instructional practices and use data to improve classroom instruction;
- developing a high-quality and sustained pre-service clinical education program that includes high-quality mentoring or coaching;
- creating a high-quality induction program for new teachers;
- implementing initiatives that increase compensation for qualified early childhood educators who attain two-year and four-year degrees;
- developing and implementing high-quality professional development for teachers in the partner high-need LEAs;
- developing effective mechanisms, which may include alternative routes to state certification, to recruit qualified individuals into the teaching profession; and
- strengthening literacy teaching skills of prospective and new elementary and secondary school teachers.

Teacher Residency Program

Grants are provided to develop and implement teacher residency programs that are based on models of successful teaching residencies and that serve as a mechanism to prepare teachers for success in high-need schools and academic subjects. Grant funds must be used to support programs that provide, among other things, rigorous graduate-level course work to earn a master's degree while undertaking a guided teaching apprenticeship, learning opportunities alongside a trained and experienced mentor teacher, and clear criteria for selecting mentor teachers based on measures of teacher effectiveness. Programs must place graduates in targeted schools as a cohort in order to facilitate professional collaboration and provide to members of the cohort a one-year living stipend or salary, which must be repaid by any recipient who does not teach full-time for at least three years in a high-need school or subject area.

Leadership Development Program

Grants are provided to develop and implement effective school leadership programs to prepare individuals for careers as superintendents, principals, early childhood education program directors, or other school leaders. Such programs must promote strong leadership skills and techniques so that school leaders are able to create a school climate conducive to professional development for teachers, understand the teaching and assessment skills needed to support

successful classroom instruction, use data to evaluate teacher instruction and drive teacher and student learning, manage resources and time to improve academic achievement, engage and involve parents and other community stakeholders, and understand how students learn and develop in order to increase academic achievement. Grant funds must also be used to develop a yearlong clinical education program, a mentoring and induction program, and programs to recruit qualified individuals to become school leaders.

Enhancing Teacher Education Programs

The HEOA amendments established five new programs in HEA, Title II, Part B, Enhancing Teacher Education: Subpart 1, Preparing Teachers for Digital Age Learners; Subpart 2, Hawkins Centers of Excellence; Subpart 3, Teach to Reach Grants; Subpart 4, Adjunct Teacher Corps; and Subpart 5, Graduate Fellowships to Prepare Faculty in High-Need Areas. None of these programs has received funding.

TEACH Grants

The College Cost Reduction and Access Act (P.L. 110-84) established the TEACH Grants under Subpart 9 of HEA, Title VI-A to provide aid directly to postsecondary students who are training to become teachers. The program provides grants to cover the cost of attendance of up to $4,000 per year ($16,000 total) for bachelor's studies or $8,000 total for master's studies to students who commit to teaching high-need subjects in low-income schools after completing their postsecondary education. Both undergraduate and graduate students are eligible for the grants and must agree to serve as full-time mathematics, science, foreign language, bilingual education, special education, or reading teachers in low-income schools for at least four years within eight years of graduating.

Current teachers, retirees from other occupations, and those who became teachers through alternative certification routes are also eligible for TEACH Grants to help pay for the costs of obtaining graduate degrees. An individual who fails to complete the agreed-upon service in low-income schools and high-need subjects is required to pay back his or her TEACH Grant as an Unsubsidized Direct Loan, including interest from the day the grant was made.

Debt Relief from Student Loans

Relief from repayment obligations under federal student loan programs has been available to teachers since before enactment of the HEA.[16] The National Defense Education Act of 1958 (NDEA, P.L. 85-864) included a loan forgiveness component of the National Defense Student Loan (NDSL) program that was intended to increase the number and quality of teachers in U.S. schools. The NDSL program was incorporated into the HEA through the Education Amendments of 1972 (P.L. 92-318) and was later renamed the Federal Perkins Loan Program by amendments made through the Higher Education Amendments of 1986 (P.L. 99-498). Under current HEA provisions,[17] qualified teachers may receive relief from up to 100% of their Perkins Loan balance, depending on years of service; although new Perkins Loans are no longer being made.[18]

[16] More information on these programs may be found in CRS Report R47837, *Service-Contingent Federal Student Loan Forgiveness and Loan Repayment Programs*, by Alexandra Hegji, Elayne J. Heisler, and Sylvia L. Bryan.

[17] HEA §465.

[18] While Perkins Loans provide forgiveness benefits to individuals employed in an array of occupations, the loan program was targeted toward students with high levels of need, and was not operating on a scale comparable to other loan programs such as the Federal Family Education Loan and Direct Loan programs.

Loan forgiveness for teachers (often referred to as the Teacher Loan Forgiveness program) was expanded to include loans made under the Federal Family Education Loan and Direct Loan programs by the Higher Education Amendments of 1998 (P.L. 105-244). For individuals who teach for five years on a full-time basis in eligible low-income schools, up to $5,000 may be canceled. Forbearance is available to borrowers during their five years of qualified teaching. Only individuals who are new borrowers on or after October 1, 1998, are eligible for this loan forgiveness benefit. The Taxpayer-Teacher Protection Act of 2004 (P.L. 108-409) increased the maximum amount of loan forgiveness to $17,500 for special education teachers and those teaching mathematics or science in secondary schools.

Teachers may also qualify for student debt relief under the Public Service Loan Forgiveness (PSLF) program, enacted by the College Cost Reduction and Access Act of 2007 (P.L. 110-84). Under the PSLF program, individuals may qualify to have the balance (principal and interest) of their Direct Loans forgiven if they have made 120 qualifying monthly payments on those loans, according to certain repayment plans, while concurrently employed full-time in public service (which can include teaching).

HEA Reauthorization Issues

The HEA is due for reauthorization. Thus far in the 118th Congress, numerous bills have been introduced to amend current law and address teacher recruitment and retention. This section discusses issues that may arise as the potential reauthorization process unfolds. The policy issues discussed here are based on existing and prior legislative proposals and are intended to provide some context for their consideration. These issues include modifying the Title II grant partnership structure, targeting support to specific teacher shortage areas or non-instructional staff, expanding teacher preparation program accountability requirements, reforming administration of the TEACH Grant program, and expanding or consolidating teacher loan forgiveness programs.

Title II Grant Partnership Structure

Currently, IHEs are a required partner in the TQP program and often serve as the sponsor of a partnership. With the rise of alternatives to traditional routes into the teaching profession, some proposals would eliminate the requirement that IHEs be a partner by allowing non-IHE-based teacher preparation providers to serve as TQP grantee sponsors as well. Current law defines a *partner institution* as a four-year IHE. Policymakers may consider amending this definition to allow two-year IHEs or other nonprofit teacher preparation programs to serve as a TQP partner institution or partnership sponsor.

To be a partner in a TQP grant, LEAs and schools must be designated as "high-need" according to definitions in Title II of the HEA. Those definitions attempt to direct support, in part, toward low-income LEAs and schools. Some feel the thresholds set by the HEA should be increased so that funds would better target very low-income LEAs and schools.

Targeting School Staff

Current federal teacher recruitment and retention programs often direct support to certain instructional areas that are considered hard-to-staff, such as mathematics, science, and special education. Some feel these provisions should be broadened to include additional subject areas (e.g., English language learner instruction) or certain hard-to-staff schools (e.g., rural and/or Native American schools). Others have proposed that the targeted position types should be broadened to include non-instructional staff such as school counselors, librarians, literacy

specialists, and coaches. There are also proposals focused on staff who serve in leadership roles (e.g., establishing principal residency programs similar to the current teacher residencies). Some have pushed for Title II amendments that would support teacher advancement into leadership through the creation of career ladders and incentives for master teachers. Still others would like to allow the Secretary to set aside Title II funds for a state grant for leadership training activities.

Preparation Program Accountability

Under current HEA provisions, IHEs that operate teacher preparation programs are required to report information on their performance including pass rates and scaled scores on teacher certification exams. States are required to report these data in aggregate as well as the results of program evaluations and any programs designated as "low-performing." Thirty states have never identified a program as low-performing and fewer than 3% of all programs nationwide have ever been identified as low-performing or at-risk of such designation.

Some policymakers have argued that current accountability provisions are inadequate. Some have asserted that non-IHE-based programs in particular are not sufficiently scrutinized. Others think that all teacher preparation programs should be subject to outcome measures beyond passage of certification exams and that programs should be judged by their graduates' professional readiness, ability to find employment, and retention in teaching, as well as the performance of their students.

TEACH Grant Program Administration

The TEACH Grant program has reportedly encountered significant administrative challenges and has been the subject of increasing congressional scrutiny. Changes that have been suggested to alleviate these issues include providing grant recipients additional time to complete the service requirement, the option to pay back part of their grant if they are unable to complete the service requirement in full.

Some observers are concerned that students in the first year or two of college are not fully aware of what profession they want to go into, and they have advocated that TEACH Grants be made available to student in their junior and senior years of college and/or to master's degree candidates. Others have sought to limit TEACH Grants to programs with a proven ability to prepare individuals effectively for the teaching profession.

Student Loan Forgiveness

Teachers may access several separate student loan relief options under current federal law. In many cases, these options serve similar purposes, but benefit requirements may conflict with or not complement one another (i.e., exercising eligibility for one program may nullify or forestall eligibility for another). The existence of multiple programs may lead to borrower confusion as well as administrative complexity. Policymakers might consider consolidating programs or targeting them to a narrower set of borrowers.

Some argue that the requirements teachers must meet to qualify for student loan relief are too difficult to understand and/or fulfill. These requirements caused the loan forgiveness programs to encounter administrative problems similar to those in the TEACH Grant program. Policymakers may consider whether to simplify these requirements to improve the effectiveness of loan forgiveness as a teacher retention tool.

Author Information

Rita R. Zota
Analyst in Education Policy

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